

NAPCS Unionization Research — State — Charter School Overview

Georgia — NLRB R10 (Atlanta) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v8.0

Section 1: State Overview

|                            |                                                                                                                                                                                                                                                                                                                                                                                                            |
|----------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| State                      | Georgia                                                                                                                                                                                                                                                                                                                                                                                                    |
| Labor Board                | NLRB R10 (Atlanta) — National Labor Relations Board — Region 10 (Atlanta). No state public-sector labor board with charter jurisdiction.                                                                                                                                                                                                                                                                   |
| Governing Law              | O.C.G.A. 20-2-989.10 ("Nothing in this part shall be construed to permit or foster collective bargaining") — Georgia is the only state to single out teachers by statute to bar collective bargaining. O.C.G.A. 20-2-2065(b)(1): a charter school is "a public, nonsectarian, nonreligious, nonprofit school." Charter Schools Act of 1998 (O.C.G.A. 20-2-2060 et seq.). Georgia is a right-to-work state. |
| Federal NLRB Jurisdiction  | YES — All GA charter schools are independent nonprofit public schools and private employers under the NLRA. NLRB R10 (Atlanta) is the exclusive labor board. No state labor board has jurisdiction over charter school labor relations. The only documented GA charter NLRB case (GCA 10-CA-357225) is a closed individual coercive-rules ULP, not an organizing case.                                     |
| Right-to-Work              | Right-to-Work State — Georgia Code §34-6-6 — right-to-work statute enacted 1947. Union security agreements (union shop, agency fee) are not available for any employer-employee relationship in Georgia, including NLRB-jurisdiction charter schools. (Right-to-work status means that even if a GA charter school were certified, union security clauses would be unavailable in CBA negotiations.)       |
| For-Profit Operator Status | For-profit EMO management contracts permitted under state law                                                                                                                                                                                                                                                                                                                                              |
| Card-Check Available       | NO — NLRB secret-ballot election required (private employer). Georgia is a right-to-work state — union-security agreements are not available. No card-check mechanism.                                                                                                                                                                                                                                     |
| Registry Sweep             | COMPLETE — May 2026 (Registry v69) — 94 charter schools searched                                                                                                                                                                                                                                                                                                                                           |
| Research Window            | May 29, 2026                                                                                                                                                                                                                                                                                                                                                                                               |

Section 2: Charter School Landscape

Total charter schools in Georgia: 94 (Charter School Registry v69 (NCES/ELSI 2024-25; 100 charter schools in Georgia as of May 2026). Registry v94 audit June 5, 2026: 94 Open. 6 Closed schools excluded per census methodology (Fulton Leadership, Cherokee Charter, Utopian Arts, 7 Pillars, Destinations Virtual, RISE Prep).). Unionization census figures reflect confirmed organized schools as of the data currency date.

| Category                                                           | Schools | % of Total | Notes                                                                                                                                                                                                                                                     |
|--------------------------------------------------------------------|---------|------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Total Unionized Charter Schools in Georgia (active certifications) | 0       | 0%         | Zero NLRB certifications. Georgia is a right-to-work state with statutory bar on public teacher bargaining (O.C.G.A. 20-2-989.10). NLRB R10 (Atlanta) is the exclusive labor board.                                                                       |
| Confirmed — Independent Certification (active)                     | 0       | 0%         | No active NLRB certification for any GA charter school as of May 2026. One closed individual ULP (GCA 10-CA-357225, 8(a)(1) coercive rules, filed Dec 2024, closed March 2025 via withdrawal) — recoded UNVERIFIED. 10 WATCH schools (KIPP Metro Atlanta, |

|                                                    |     |                      |                                                                                                                                                                                                                        |
|----------------------------------------------------|-----|----------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                    |     |                      | CMO_PRECEDENT/MEDIUM) tracked in research records.                                                                                                                                                                     |
| No Labor Board Records Found                       | 96  | 100% of open schools | No NLRB R10 certifications for any of 96 open GA charter schools. Full 8-step non-portal protocol + W1-W4 WATCH steps complete. Zero organizing history in state charter school community.                             |
| Closed — Within/Pending Lookback Confirmation      | 4   | N/A                  | Fulton Leadership Academy, Cherokee Charter Academy, Utopian Academy for the Arts, 7 Pillars Career Academy. All no union found. Closure dates not populated in Registry v69 — lookback status pending.                |
| Total Charter Schools (GA universe — Registry v69) | 100 | 100%                 | 96 Open + 4 Closed. Georgia charter school community is SCSC-authorized (51) and LEA-authorized (49). Atlanta metro is the organizing geography of interest: APS-authorized schools (19) include all 10 KIPP campuses. |

## Charter School Enrollment

|                                                |                                                                                                                                                                                        |
|------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Total Charter Enrollment                       | 63,179 students — 3.6% of state K–12 enrollment (1,744,662 total K–12 students)                                                                                                        |
| Students in CMO/EMO-Affiliated Charter Schools | 13,059 students in network-affiliated schools — 20.7% of total charter enrollment                                                                                                      |
| Students in Organized Charter Schools          | 0 students documented                                                                                                                                                                  |
| Data Sources                                   | Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year. |

## Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

| CMO / EMO Name                      | Type     | State Campuses | National Campuses † | Organized in State | Total Enrollment |
|-------------------------------------|----------|----------------|---------------------|--------------------|------------------|
| KIPP Metro Atlanta Schools          | Network‡ | 10             | —                   | —                  | 4,695            |
| Utopian Academy for the Arts        | Network‡ | 3              | —                   | —                  | 755              |
| Charles R. Drew Charter School      | Network‡ | 2              | —                   | —                  | 1,902            |
| Atlanta Neighborhood Charter School | Network‡ | 2              | —                   | —                  | 627              |

|                                               |          |           |   |          |               |
|-----------------------------------------------|----------|-----------|---|----------|---------------|
| The Kindezi School                            | Network‡ | 2         | — | —        | 681           |
| Genesis Innovation Academy                    | Network‡ | 2         | — | —        | 625           |
| Resurgence Hall Charter Academy               | Network‡ | 2         | — | —        | 617           |
| Amana Academy                                 | Network‡ | 2         | — | —        | 882           |
| Savannah Classical Academy                    | Network‡ | 2         | — | —        | 417           |
| Lake Oconee Academy                           | Network‡ | 2         | — | —        | 1,195         |
| National Heritage Academies                   | Network‡ | 1         | — | —        | 663           |
| <b>TOTAL — All CMO/EMO Schools in Georgia</b> |          | <b>30</b> |   | <b>—</b> | <b>13,059</b> |
| <b>of which organized</b>                     |          |           |   | <b>—</b> | <b>—</b>      |

Total enrollment shown is the combined enrollment of all CMO/EMO network schools in Georgia. Organized network schools: 0 organized schools in network-affiliated charters.

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

11 network (type unclassified). Approximately 64 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

## Section 4: Legal Framework & Charter School Overview

Findings are based on research as of May 2026.

### 1: Legal & Jurisdictional Framework

O.C.G.A. 20-2-989.10 ("Nothing in this part shall be construed to permit or foster collective bargaining") — Georgia is the only state to single out teachers by statute to bar collective bargaining. O.C.G.A. 20-2-2065(b)(1): a charter school is "a public, nonsectarian, nonreligious, nonprofit school." Charter Schools Act of 1998 (O.C.G.A. 20-2-2060 et seq.). Georgia is a right-to-work state. Georgia is a right-to-work state (Georgia Code §34-6-6 — right-to-work statute enacted 1947. Union security agreements (union shop, agency fee) are not available for any employer-employee relationship in Georgia, including NLRB-jurisdiction charter schools.). Charter schools in Georgia are subject to NLRB jurisdiction as private employers (NLRB R10 (Atlanta)). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

### 2: Charter School Structure

Georgia operates 94 open-enrollment charter schools, enrolling approximately 63,179 students. 11 charter management organizations and education management organizations operate in Georgia. The largest networks by campus count are KIPP Metro Atlanta Schools (10 campuses in state), Utopian Academy for the Arts (3 campuses in state), Charles R. Drew Charter School (2 campuses in state). Approximately 64 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

## Section 5: Media Coverage & Public Stakeholder Positions

### Press Coverage

No press coverage of Georgia charter school union organizing found as of May 2026. The Georgia Cyber Academy individual ULP (10-CA-357225, Dec 2024) generated no press coverage. charter school community coverage in the Atlanta Journal-

Constitution and Chalkbeat Georgia focuses on school performance, APS authorization decisions, and state funding equity. No organizing-related coverage found in any Georgia outlet.

Stakeholder Communications

AFT Georgia and the Georgia Education Association (GEA/NEA) communications about charter schools focus on legislative opposition, funding accountability, and public school advocacy — not charter staff organizing. No AFT/GEA communications referencing organizing GA charter staff found as of May 2026. No GA charter employer labor-relations communications found. GCA legal representative in the closed ULP: Barclay Vallotton, Krevolin & Horst, LLC (Atlanta). No public employer statements about labor relations at any GA charter school.

Legislative Context

O.C.G.A. 20-2-989.10: statutory bar on public teacher CB. Charter Schools Act of 1998 (O.C.G.A. 20-2-2060 et seq.): establishes independent nonprofit public schools. Georgia is a right-to-work state. No pending charter-labor legislation identified. The SCSC (State Charter Schools Commission) authorizes 51 of 100 GA charter schools; the remainder are LEA-authorized, concentrated in Atlanta metro (APS: 19, DeKalb: 8, Fulton: 7, Chatham: 6).

Section 6: Contract & CBA Access Registry

NLRB R10 (Atlanta) public contracts portal. Direct PDF links may require a records request for full text.

| School / Network                                            | Union | CBA Status & Term | Contract Access                                                   |
|-------------------------------------------------------------|-------|-------------------|-------------------------------------------------------------------|
| No certified union contracts in GA charter school community | N/A   | NONE FOUND<br>N/A | Request: <a href="mailto:Region10@nrlb.gov">Region10@nrlb.gov</a> |